

M/S Rathi Super Steel Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 March 2013 · WRIT - C No. - 11018 of 2013 · **Writ disposed; deposit 27.2.2013 bills by 15.3.2013 or licensee may act; respondents to adhere to cl. 6.1(g) and 4.36(a).**

HEADNOTE

Division Bench declined disputed facts on when provisional bills were received and did not decide the consumer's technical challenge. On the offer to pay, it directed deposit of the entire bill raised on 27 February 2013 by 15 March 2013, failing which the licensee could act as permitted by law, and that respondents make effort to adhere to clauses 6.1(g) and 4.36(a) of the U.P. Electricity Supply Code, 2005 when raising bills.

FACTUAL SUMMARY

M/S Rathi Super Steel Ltd. challenged several provisional bills of Paschimanchal Vidyut Vitran Nigam Ltd., alleging that the licensee had not given the fifteen days for payment required by clauses 6.1(g) and 4.36(a) of the U.P. Electricity Supply Code, 2005. It offered to deposit the amounts if that time was allowed. Counsel for the licensee submitted that a writ filed on 26 February 2013 could not rest on a bill received only on 27 February 2013, so service must have been earlier.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.1(g)

time-for-payment-of-bills

HOLDING

The Court did not decide whether the provisional bills violated the fifteen-day payment window in clauses 6.1(g) and 4.36(a) of the U.P. Electricity Supply Code, 2005, or when they were served. Because the consumer was willing to deposit the entire amount, the writ was disposed of directing that if the bill raised on 27 February 2013 was not paid by 15 March 2013 the licensee could take action permitted by law, and that respondents make effort to adhere to those two provisions when raising bills. ¶ 1

FLAG Clause 4.36(a) was invoked with 6.1(g) for a fifteen-day payment period; the Court did not quote either clause.

PRINCIPLE TAGS

relegate-to-statutory-remedy Division Bench declined disputed facts on when provisional bills were received and did not decide the consumer's technical challenge.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL BILLS WERE SERVED IN TIME OR VIOLATED CLAUSES 6.1(G) AND 4.36(A)

Court declined disputed questions of fact on the date of receipt and did not decide the technical challenge on merits. ¶ 1